

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

CASE OF BORODIN AND OTHERS v. RUSSIA

(Applications nos. 50067/18 and 37 others –
see appended list)

JUDGMENT

STRASBOURG

7 March 2024

This judgment is final but it may be subject to editorial revision.



In the case of Borodin and Others v. Russia,

The European Court of Human Rights (First Section), sitting as a Committee composed of:

Lətif Hüseynov*, President*,
Ivana Jelić,
Erik Wennerström*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 8 February 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention and its Protocols.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, concerning various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016,

concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention, *Korneyeva*, cited above, §§ 62-65 as to the right of the organisers or participants of public assemblies not to be tried and punished twice for the same offence, and *Elvira Dmitriyeva v. Russia*, nos. 60921/17 and 7202/18, §§ 77-90, 30 April 2019, concerning administrative convictions for making calls to participate in public events.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraph 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to the facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. Holds

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 7 March 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Lətif Hüseynov
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	50067/18 10/10/2018	**Georgiy Andreyevich BORODIN** 1998	Zhdanov Ivan Yuryevich Vilnius	Manifestation against Putin's re-election Voronezh 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Voronezh Regional Court 04/07/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - overlap of the facts constituting the basis for the applicant's prosecution in the second set of proceedings ended on 04/07/2018 (Art. 20.2 § 5 of CAO) with substantially the same facts underlying his conviction in the first set of proceedings ended on 21/06/2018 (Art. 19.3 § 1 of CAO)	4,000
2.	26536/21 30/04/2021	**Kseniya Alekseyevna PAKHOMOVA** 1994	Solovyev Leonid Alekseyevich Moscow	Manifestation to support A. Navalnyy Pokrov 06/04/2021	article 20.2.2 § 3 of CAO	detention for 9 days	Vladimir Regional Court 14/04/2021	Art. 5 (1) - unlawful detention - (i) escorting to and detention at the police station for compiling an offence report from 4.00 p.m. on 06/04/2021 until the hearing in the first-instance court on 07/04/2021; (ii) escorting to the police station on 25/04/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - both sets of administrative proceedings,	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentences of administrative detention imposed on the applicant (both sets of administrative proceedings) were executed immediately, on account of the lack of suspensive effect of an appeal under the CAO, Art. 10 (1) - conviction for making calls to participate in public events - rally to support A. Navalnyy on 21/04/2021 in Moscow, Article 20.2 § 2 of CAO, detention for 10 days, final decision Moscow City Court 29/04/2021	
3.	49537/21 16/09/2021	**Nina Aleksandrovna RESHETILOVA** 1970	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally against construction works in Mitino Park Moscow 27/09/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 22/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report on 22/04/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Art. 10 (1) - conviction for making calls to participate in public events - rally to support A. Navalnyy on 21/04/2021 in Moscow, Article 20.2 § 8 of CAO, detention for 15 days, final decision Moscow City Court 26/04/2021	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
4.	51178/21 08/10/2021	**Maksim Vyacheslavovich PAYELOV** 1987		Rally "Free Navalnyy" Moscow 23/01/2021 Manifestation to support A. Navalnyy Moscow 21/03/2021	article 20.2 § 5 of CAO Article 20.2 § 8 of CAO	fine of RUB 10,000 fine of RUB 150,000	Moscow City Court 14/04/2021 Moscow City Court 25/08/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 3.00 p.m. until 7.30 p.m. on 23/01/2021 and on 11/05/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - both sets of administrative proceedings	4,000
5.	51346/21 18/09/2021	**Darya Andreyevna UDACHINA** 2001	Zboroshenko Nikolay Sergeyevich Mytishchi	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 17/06/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
6.	51913/21 08/10/2021	**Maksim Igorevich CHERKASOV** 1986	Zhdanov Ivan Yuryevich Vilnius	Rally to support A. Navalnyy Tambov 12/03/2021	article 20.2 § 6.1 of CAO	detention for 6 days	Tambov Regional Court 26/05/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - overlap of the facts constituting the basis for the applicant's prosecution in the second set of proceedings which ended on 28/06/2021 (Art. 20.2 § 2 of CAO) with substantially the same facts underlying his conviction in the first set of proceedings which ended on 26/05/2021 (Art. 20.2 § 6.1 of CAO),	5,000

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								Art. 10 (1) - conviction for making calls to participate in public events - rally to support A. Navalnyy on 31/01/2021 in Tambov, Article 20.2 § 2 of CAO, detention for 7 days, final decision Tambov Regional Court 26/05/2021	
7.	54830/21 29/10/2021	**Olga Aleksandrovna KARTAVTSEVA** 1980	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy" Omsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Omsk Regional Court 11/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.20 p.m. until 3.00 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
8.	54934/21 27/10/2021	**Konstantin Valentinovich POKHILCHUK** 1996	Semenov Daniil Aleksandrovich St Petersburg	Opposition gathering St Petersburg 22/06/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 27/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
9.	56688/21 02/11/2021	**Alipat Magomedovna SULTANBEGOVA** 1991	Vertegel Feliks Yevgenyevich Krasnodar	Rally "Free Navalnyy" Krasnodar 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnodar Regional Court 05/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report: (i) from 5.30 p.m. until 11.00 p.m. on 23/01/2021; (ii) from 18.30 p.m. on 19/04/2021 until 7.00 p.m. on 20/04/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - both sets of administrative proceedings, Art. 10 (1) - conviction for making calls to participate in public events - rally to support A. Navalnyy on	5,000

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								21/04/2021 in Krasnodar, Article 20.2 § 2 of CAO, detention for 10 days, final decision Krasnodar Regional Court 09/08/2021, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant (proceedings ended on 09/08/2021) was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	
10.	56883/21 31/10/2021	**Alina Dmitriyevna MACHULSKAYA** 1991	Zboroshenko Nikolay Sergeyevich Mytishchi	Forum of independent local elected representative Moscow 13/03/2021	article 20.33 of CAO	fine of RUB 15,000	Izmaylovskiy District Court in Moscow 21/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 10.30 a.m. until 6.00 p.m. on 13/03/2021	4,000
11.	57098/21 08/11/2021	**Sergey Yevgenyevich VDOVIN** 1969	Zboroshenko Nikolay Sergeyevich Mytishchi	Forum of independent local elected representatives Moscow 13/03/2021	article 20.33 of CAO	fine of RUB 15,000	Izmaylovskiy District Court in Moscow 18/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 10.30 a.m. until 3.30 p.m. on 13/03/2021	4,000
12.	57102/21 08/11/2021	**Dmitriy Igorevich GOLIKOV** 1983	Zboroshenko Nikolay Sergeyevich Mytishchi	Forum of independent local elected representatives Moscow 13/03/2021	article 20.33 of CAO	fine of RUB 15,000	Izmaylovskiy District Court in Moscow 25/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 1.00 p.m. until 4.30 p.m. on 13/03/2021	4,000

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13.	57633/21 07/11/2021	**Maksudzhon Mashrabovich KOMILOV** 1990	Zboroshenko Nikolay Sergeyevich Mytishchi	Gathering in front of Tadjik Embassy Moscow 02/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 13/07/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report on 02/04/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
14.	61502/21 19/11/2021	**Vladislav Vladimirovich BAYKOV** 1995 **Kseniya Andreyevna KOCHERGO** 1997	Nechiporenko Natalya Aleksandrovna Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 19/05/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 3.22 p.m. until 11.20 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
15.	323/22 08/12/2021	**Timofey Viktorovich ANDRONOV** 1996	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy" Volgograd 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Volgograd Regional Court 21/07/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 1.20 p.m. until 8.00 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
16.	1414/22 30/12/2021	**Aleksandr Vasilyevich POPOV** 1979	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy" Yaroslavl 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Yaroslavl Regional Court 08/09/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

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17.	2791/22 30/12/2021	**Zhanna Yevgenyevna VAGINA** 1972	Zhdanov Ivan Yuryevich Vilnius	Rally in support of A. Navalnyy Polyarniye Zori 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Murmansk Regional Court 23/07/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Art. 10 (1) - conviction for making calls to participate in public events - rally to support A. Navalnyy on 21/04/2021 in Polyarniye Zori, Article 20.2 § 2 of CAO, fine of RUB 20,000, final decision by the Murmansk Regional Court on 23/07/2021	4,000
18.	2825/22 30/12/2021	**Nikolay Pavlovich PRIBYLOV** 1979	Zhdanov Ivan Yuryevich Vilnius	Rally in support of A. Navalnyy Polyarniye Zori 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Murmansk Regional Court 13/08/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Art. 10 (1) - conviction for making calls to participate in public events - rally to support A. Navalnyy on 21/04/2021 in Polyarniye Zori, Article 20.2 § 2 of CAO, fine of RUB 20,000, final decision by the Murmansk Regional Court on 13/08/2021	4,000
19.	3298/22 30/12/2021	**Aleksandr Vasilyevich POPOV** 1979	Zhdanov Ivan Yuryevich Vilnius	Rally "Free Navalnyy" Yaroslavl 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Yaroslavl Regional Court 20/07/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
20.	3951/22 21/12/2021	**Andrey Sergeyevich VOROBYEV** 1988	Tkachenko Ilya Valeryevich Gatchina	Rally "Free Navalnyy" St Petersburg 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 15,000	St Petersburg City Court 22/06/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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21.	4130/22 24/12/2021	**Yana Vladimirovna BELYAYEVA** 2000	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Krasnoyarsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 5,000	Krasnoyarsk Regional Court 24/06/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station from 1.20 p.m. until 5.20 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
22.	4182/22 23/12/2021	**Emiliya Sergeyevna ALEKSEYEVA** 1989	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" St Petersburg 31/01/2021	article 20.2.2 § 1 of CAO	fine of RUB 10,000	St Petersburg City Court 24/06/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 3.58 p.m. until 10.10 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
23.	4226/22 18/12/2021	**Yelena Georgiyevna MURGANOVA** 1988	Peredruk Aleksandr Dmitriyevich St Petersburg	Opposition gathering St Petersburg 18/06/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 01/07/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.42 p.m. until 6.41 p.m. on 18/06/2020, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
24.	4597/22 24/12/2021	**Andrey Pavlovich SYCHEV** 1988	Prosvirkina Kseniya Dmitriyevna Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 15/09/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.52 p.m. on 31/01/2021 until 12.50 a.m. on 01/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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25.	4625/22 24/12/2021	**Yevgeniy Aleksandrovich OVCHINNIKOV** 2002	Prosvirkina Kseniya Dmitriyevna Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 29/06/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.05 p.m. on 31/01/2021 until 5.20 p.m. on 01/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
26.	4766/22 24/12/2021	**Denis Anatolyevich GETMAN** 1987	Gerasimova Yekaterina Viktorovna St Petersburg	Opposition gathering St Petersburg 22/06/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 06/07/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.49 p.m. until 9.49 p.m. on 22/06/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
27.	7502/22 30/12/2021	**Andrey Andreyevich NOVOKRESHCHENNYKH** 1987	Vasin Vladimir Valeryevich Krasnoyarsk	Rally "Free Navalnyy" Krasnoyarsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnoyarsk Regional Court 15/07/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.50 p.m. until 4.02 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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28.	7538/22 24/01/2022	**Farit Zufarovih SHARAFUTDINOV** 1988	Pershakova Yelena Yuryevna Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 29/07/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from approximately 11.00 a.m. until 8.00 p.m. on 02/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
29.	7631/22 18/01/2022	**Naum Isayevich GURALNIK** 1934	Zboroshenko Nikolay Sergeyevich Mytishchi	Forum of independent local elected representatives Moscow 13/03/2021	article 20.33 of CAO	fine of RUB 15,000	Izmaylovskiy District Court in Moscow 22/07/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 10.00 a.m. until 11.00 p.m. on 13/03/2021	4,000
30.	7733/22 13/01/2022	**Olga Anatolyevna NIKOLAYEVA** 1986	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Tver 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 12,000	Tver Regional Court 21/07/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 7.05 p.m. until 8.25 p.m. on 21/04/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
31.	7746/22 13/01/2022	**Mariya Mikhaylovna SHCHETININA** 2000	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 15/07/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 3.00 p.m. on 31/01/2021 until 2.35 a.m. on 01/02/2021,	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	
32.	8030/22 14/01/2022	**Sofya Olegovna MEDVEDEVA** 1995	Popkov Aleksandr Vasilyevich Sochi	Rally "Free Navalnyy" Sochi 23/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 19,000	Krasnodar Regional Court 11/08/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
33.	8097/22 15/01/2022	**Yelena Borisovna FERDMAN** 1980	Kachanov Roman Yevgenyevich Yekaterinburg	Rally "Free Navalnyy" Ekaterinburg 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Sverdlovsk Regional Court 21/07/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
34.	8100/22 14/01/2022	**Valentin Vladimirovich YAKUNIN** 1967	Usanova Olimpiada Valentinovna Nizhniy Novgorod	Rally "Free Navalnyy" Nizhniy Novgorod 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 14/07/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.40 p.m. until 6.40 p.m. on 31/01/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
35.	8245/22 29/01/2022	**Anastasiya Arnoldovna MOISEYEVA** 2003	Markin Konstantin Aleksandrovich Velikiy Novgorod	Rally "Free Navalnyy" Novgorod 21/04/2021	article 20.2 § 5 du CIA	fine of RUB 5,000	Novgorod Regional Court 12/08/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station from 8.00 p.m. until 10.10 p.m. on 21/04/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - absence of a prosecutor in the appeal instance	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
36.	27426/22 17/05/2022	**Polina Pavlovna BASHUROVA** 1998	Zyryanova Mariya Sergeyevna St Petersburg	Gathering on occasion of International Day for the Elimination of Violence against Women St Petersburg 25/11/2021	article 20.2 § 2 of CAO	fine of RUB 20,000	St Petersburg City Court 18/01/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 8.15 p.m. on 25/11/2021 until the hearing in the first-instance court on 27/11/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
37.	32097/22 31/05/2022	**Mikhail Grigoryevich FEDOROV** 1972	Podolskiy Sergey Viktorovich St Petersburg	Protest against the war in Ukraine St Petersburg 06/03/2022 Protest against the war in Ukraine St Petersburg 13/03/2022	article 20.2 § 6.1 of CAO article 20.2 § 6.1 of CAO	fine of RUB 10,000 detention for 5 days	St Petersburg City Court 09/06/2022 St Petersburg City Court 17/03/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report: (i) first set of the proceedings - from 1.50 p.m. on 06/03/2022 until 1.30 a.m. on 07/03/2022; (ii) second set of the proceedings - from 2.30 p.m. on 13/03/2022 until the hearing in the first-instance court on 14/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
38.	45432/22 26/08/2022	**Arina Sergeyevna ZABOLOTSKIKH** 2002	Sabirov Rim Faridovich Kazan	Protest against the war in Ukraine Kazan 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Republic of Tatarstan 27/04/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report: (i) first set of the proceedings - from 2.05 p.m. on 06/03/2022 until the hearing in the first-instance court on 07/03/2022; (ii) second set of the proceedings - from 3.50 on 15/03/2022 until the hearing in the first-instance court on the same day, Art. 10 (1) - conviction for the display of slogans/banners/other symbols by participants in public events - displaying banner, Art. 20.3.3 § 1 of CAO, fine of RUB 30,000, Supreme Court of the Republic of Tatarstan, 25/05/2022	5,000

[1] Plus any tax that may be chargeable to the applicants.